

25STLC02783 25STLC02783

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-03

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Case Number: 25STLC02783 Hearing Date: September 3, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff

Selective Insurance Company of the Southeast's Motion for an Order Deeming Requests for Admissions Admitted is placed off calendar.

Order to Show

Cause Re: Failure to Enter Default Judgment Against Defendant Shannon Elizabeth Reed is scheduled for 10/01/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

Plaintiff Selective Insurance Company of the Southeast ("Plaintiff") filed the instant action for insurance subrogation against Defendant Shannon Elizabeth Reed ("Defendant") on April 8, 2025. Following Defendant's failure to file a responsive pleading, the Court entered Defendant's default on October 22, 2025. While in default, Defendant filed a General Denial to the Complaint on November 4, 2025.

On August 5, 2026, Plaintiff filed the instant Motion for an Order Deeming Requests for Admissions Admitted. Plaintiff served Plaintiff with the Motion by first-class mail on August 5, 2026. No opposition has been filed to date.

Defendant is in

default. The general denial was filed

after default was entered and is therefore not effective. Plaintiff offers no basis to proceed with

discovery against a defendant that is out of court. (See Sporn v. Home Depot USA, Inc. (2005) 126 Cal.App.4th 1294, 1301.) The Court of Appeals recently held that admissions obtained against a defaulted party have no evidentiary value. (LCPFV, LLC v. Somatdary Inc. (2024) 106 Cal.App.5th 743, 756.) Based on the Motion, which discusses meet-and-confer efforts in May through June 2026, it is not clear to the Court that Plaintiff understands the posture of the case. (See Mot., Kim Decl., ¶¶ 2-5.) Once default has been entered against a defendant, the plaintiff must obtain default judgment within 45 days; if the plaintiff fails to do so, the Court may set an Order to Show Cause. (Cal. Rules of Court, rule 3.110(h).)

The Court,
therefore, takes the instant Motion off calendar and sets an Order to Show Cause regarding Plaintiff's failure to obtain default judgment.

Conclusion

Plaintiff

Selective Insurance Company of the Southeast's Motion for an Order Deeming Requests for Admissions Admitted is placed off calendar.

Order to Show

Cause Re: Failure to Enter Default Judgment Against Defendant Shannon Elizabeth Reed is scheduled for 10/01/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Moving party to give notice.